

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR YAKIMA COUNTY

HOFFMAN ORGANICS LLC,

Petitioner,

v.

PETERS FARMS LTD.,

Respondent.

Case No. 26-2-0____ (to be assigned)

VERIFIED PETITION FOR ADJUDICATION OF
SECTION 8 AQUIFER SUB-BASIN WATER RIGHTS

I. INTRODUCTION

Petitioner Hoffman Organics LLC, a Washington limited liability company operated by James R. Hoffman, hereby petitions this Court for adjudication of water rights in the Section 8 aquifer sub-basin of Yakima County pursuant to RCW 90.03.110 et seq. This petition seeks to establish and protect the appurtenant water rights for irrigated organic agricultural use on approximately twelve (12) acres of leased farmland on the Bridwell property, Yakima County Assessor Parcel No. 181320-41025.

II. PARTIES

1. Petitioner Hoffman Organics LLC is a Washington LLC with its principal place of business at 7214 Wide Hollow Road, Yakima, WA 98908. James R. Hoffman is the Managing Member and sole operator of the certified organic farm.
2. Respondent Peters Farms Ltd. is a Washington corporation operating an adjacent conventional farming operation. Peters Farms has been diverting water from the shared Section 8 aquifer sub-basin in quantities that Petitioner contends exceed its permitted allocation and adversely impact irrigation capacity.

III. JURISDICTION AND VENUE

This Court has jurisdiction under RCW 90.03.110 for adjudication of water rights. Venue is proper in Yakima County Superior Court because the water source and all parcels at issue are located in Yakima County.

IV. FACTUAL BACKGROUND

3. Hoffman Organics has operated a USDA-certified organic farm on the Bridwell property continuously since 2019, relying on groundwater drawn from the Section 8 aquifer sub-basin for all crop irrigation.
4. Between April and September 2026, Petitioner documented a measurable decline in well output from approximately 45 gallons per minute (GPM) to 28 GPM, coinciding with Peters Farms installation of two additional high-capacity irrigation wells on Parcel No. 181320-41030.
5. WSU Extension irrigation monitoring logs (2024-2026) confirm the historical draw rates and the 2026 decline pattern.
6. The reduced water availability threatens the ability to maintain organic certification requirements, which mandate adequate irrigation for certified crop production, and jeopardizes the economic viability of the farm operation including the Yakima Saturday Market booth, CSA program (28 confirmed households for 2027), and restaurant delivery contracts.

V. CLAIMS

7. First Claim - Priority of Appropriation: Petitioner holds senior appropriative rights to groundwater from the Section 8 aquifer sub-basin by virtue of prior and continuous beneficial use since 2019.

8. Second Claim - Unreasonable Impairment: Respondent increased pumping constitutes unreasonable impairment of established water rights under RCW 90.44.070.

VI. RELIEF REQUESTED

Petitioner respectfully requests that this Court:

- (a) Adjudicate the relative water rights of Petitioner and Respondent in the Section 8 aquifer sub-basin;
- (b) Declare priority of appropriation;
- (c) Enjoin Respondent from pumping in excess of its allocated share;
- (d) Award Petitioner costs and reasonable attorney fees; and
- (e) Grant such other relief as the Court deems just and equitable.

VII. FILING DEADLINE AND PACKET REQUIREMENTS

Per the Yakima County Superior Court Clerk notice dated September 30, 2026, the complete petition packet must be filed no later than October 25, 2026. The packet shall include:

- (1) This verified petition with historical Bridwell lease terms attached
- (2) Aquifer draw evidence from WSU Extension irrigation logs (2024-2026)
- (3) Written statements from at least two neighboring organic growers
- (4) Filing fee of \$265.00 payable to Yakima County Superior Court
- (5) Signed certification of service on Peters Farms Ltd. counsel

VERIFICATION

I, James R. Hoffman, Managing Member of Hoffman Organics LLC, declare under penalty of perjury under the laws of the State of Washington that the foregoing petition is true and correct to the best of my knowledge and belief.

Date: _____

James R. Hoffman
Managing Member, Hoffman Organics LLC
7214 Wide Hollow Road, Yakima, WA 98908

DRAFT - NOT YET FILED - Pending orchard vote and Catherine review